1.

CASE #	CASE NAME	HEARING NAME
CVRI2504066	HEREDIA VS WINGLER	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

The hearing on the motion is continued to July 21, 2026, at 8:30 a.m. No further briefing is permitted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601145	COLLINS VS UHS-CORONA, INC.	MOTION TO QUASH SERVICE OF SUMMONS

Tentative Ruling:

Plaintiff's Evidentiary Objections in Support of Opposition

Objections to the Declaration of Benjamin A. Waters is overruled.
Objections to the Declaration of Jennifer O' Sullivan are sustained.

UHSI's Evidentiary Objections in Support of Reply

Objections to the Declaration of Daniel Weinberg are sustained.

UHSI specially appears to challenge the service of Complaint upon it based on the lack of personal jurisdiction. Code of Civil Procedure section 418.10 authorizes a motion to quash service of summons to be filed within the time allowed for filing a response to the complaint. (Code Civ. Proc., §418.10(e)(1).) A defendant "can preserve objections to personal jurisdiction only by making a special appearance, i.e., an appearance for the sole purpose of objecting to the court's jurisdiction." (*Marriage of Obrecht* (2016) 245 Cal.App.4th 1, 8.) "A special appearance does not confer jurisdiction on the court for any purpose other than determining the question of jurisdiction over the person." (*Ibid*.)

"[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that 'minimum contacts' exist between defendant and the forum state to justify imposition of personal jurisdiction." (*Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 710; *Buchanan v. Soto* (2015) 241 Cal.App.4th 1353, 1362 [plaintiff has the burden of proving by a preponderance of the evidence justifying exercise of jurisdiction].) Evidence may be in the form of declarations or a verified complaint. (See *Evangelize China Fellowship, Inc. v. Evangelize China Fellowship, Hong Kong* (1983) 146 Cal.App.3d 440, 444.)

Once plaintiff meets this burden, "it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (*Buchanan v. Soto, supra,* 241 Cal.App.4th at p. 1362.) **The initial burden was not met by Plaintiff.**

Plaintiff fails to demonstrate "minimum contact"

Under this state's long-arm statute, a California court "may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) Due process requires that a defendant who is not present within the forum state must have certain "minimum contacts" with it "such that the maintenance of the suit does not offend 'traditional notions of fair play and substantial justice." (*International Shoe Co. v. State of Wash., Office of Unemployment Compensation & Placement* (1945) 326 US 310, 316 (*International Shoe*).) "Minimum contacts exist where the defendant's conduct in the forum state is such that he should reasonably anticipate being subject to suit there, and it is reasonable and fair to force him to do so." (*F.Hoffman-La Roche, Ltd. v. Superior Court* (2005) 130 Cal.App.4th 782, 795.) Each defendant's contact with the forum state must be assessed individually. (*Calder v. Jones* (1984) 465 US 783, 784.)

Courts recognize two types of jurisdictions under the minimum-contacts framework: (1) "general jurisdiction" and (2) "specific jurisdiction". (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 445.) "General jurisdiction exists when a defendant is domiciled in the forum state or his activities there are substantial, continuous, and systematic." [Citation.] (*Sacramento Suncreek Apartments, LLC v. Cambridge Advantaged Properties II, L.P*. (2010) 187 Cal.App.4th 1, 9.) "Specific jurisdiction" points to instances where " ' (1) "the defendant has purposefully availed himself or herself of forum benefits [citation]; (2) the 'controversy is related to or "arises out of" [the] defendant's contacts with the forum' "[citations]'; and (3) " 'the assertion of personal jurisdiction would comport with "fair play and substantial justice" ' [Citations.]" (*Ibid*.)

Plaintiff contends specific jurisdiction has been established because UHSI has purposefully availed itself in California. He argues UHSI's website, press releases, and documents demonstrate UHSI engaged in activities beyond that of a passive holding company, such as advertising, recruiting employees, implementing policy and standards for its healthcare facilities. In support of this contention, Plaintiff relies on the exhibits included with the declaration of his counsel, Daniel Weinberg ("Weinberg Decl."), consisting of over 700 pages of print-out from UHSI's websites and other corporate documentations, which according to Plaintiff, constitute evidence of the following activities:

> (1) UHSI transacts business in California; (2) USHI advertises its services and facilities to and maintains an interactive website with California residents; (3) UHSI acquired UHS Corona, (4) UHSI executives sit on UHS-Corona's governing board and in its executive offices, (5) UHSI recruits employees, including California residents, through UHSI's corporate

> platform, (6) UHSI reports revenues from 'out acute care hospitals,' (7) UHSI guarantee obligations of its management company, (8) UHSI promotes … policy and standards for USHI's healthcare facilities, services and service providers including UHS, Corona, and (9) UHSI administers system-wide compliance functions throughout its healthcare system. (Opposition 3:19-4:1.)

According to Plaintiff, there is no evidence establishing USHI's only business is investment in its subsidiaries and that the information taken from USHI's very own website shows that it engaged in activities going beyond a mere passive investor. For instance, Plaintiff relies on specific advertising language taken from UHSI's website to argue that it contradicts any notion that UHSI does not control the day-to-day operation of UHS-Corona, Inc. as the website explicitly states UHSI operates 5 acute care hospitals in Southern California with 5,000 employees, one of which is expressly identified as UHS-Corona, Inc. Plaintiff also relies on the statement on the website stating "At UHS, we set higher ethical standards for our businesses because care for patients is the most sacred trust" and argues that such statement is proof that UHSI sets policies for all of its subsidiary facilities. (Weinberg Decl., Ex. 25.) Plaintiff also argues UHSI's "interactive website" provides for personal jurisdiction by directly targeting California residents with "Find a UHS Facility Location in Your Community" where a patient can click on a map, locate UHS Corona, and a link directly to the UHS Corona Website. Plaintiff's arguments fail.

UHSI objects to the exhibits attached to Weinberg's declaration on the ground the contents of such exhibits are inadmissible hearsay and for lack of foundation. **The objections are sustained.** Even assuming the exhibits are admissible, the cherry-picked statements from UHSI's website cannot serve as evidence of the purported purposeful availment as the very same website states the contrary of what Plaintiff is claiming. For instance, the website's corporate information page attached as Exhibit 25 of Weinberg's declaration explicitly states the following:

> Universal Health Services, Inc. is a holding company that operates through its subsidiaries. All healthcare and management operations are conducted by subsidiaries of Universal Health Services, Inc. To the extent there is any reference to 'UHS' or 'UHS facilities' on this website, including any statements, articles or other publications contained herein which relates to healthcare or management operations, they are referring to Universal Health Services, Inc.'s subsidiaries. Further, the terms 'we, 'us,' 'our' or 'the company' in such context similarly refer to the operations of the subsidiaries of Universal Health Services, Inc. any references to employment at UHS or employees of UHS refers to employment with one of the subsidiaries of Universal Health Services, Inc.

Furthermore, as UHSI points out, Plaintiff's evidence cannot sustain his burden to establish the required nexus between his cause of action and UHSI's forum-related conduct within the context of its relationship with its California subsidiary for specific jurisdiction to attach. California courts have unanimously held “neither ownership nor control of a subsidiary corporation by a foreign parent corporation, without more, subjects the parent to the jurisdiction of the state where the subsidiary does business.” (*Sonora Diamond Corp*. (2000) 83 Cal.App.4th 523, 540.) “The principle of availment arises where it is shown that a specific activity of the parent corporation, while done in the context of the parent-subsidiary relationship, is itself sufficient to justify the exercise of specific jurisdiction over the parent by the forum state.” (*Id*. at 552.) “Because jurisdiction on this ground is specific rather than general, the acts furnishing the basis for jurisdiction must be related to the cause of action for which jurisdiction is sought.” [Citations.] (*Ibid*.) Here, Plaintiff merely argues that his claims arise directly from these California-directed activities because Plaintiff alleges in his Complaint that “UHSI owned, managed, directed, controlled, and operated UHS Corona through its officers, directors, agents, subsidiaries, and affiliated entities, and that UHSI’s policies, staffing decisions, supervision, and operational practices contributed to the negligent care that left Plaintiff permanently paraplegic.” (Opposition, 14:3-8.) However, such generalized management activities do not suffice to establish special jurisdiction. As explained in *Sonora, supra*, the parent company must have engage in certain acts related to the cause of action brought by Plaintiff within the context of the parent’s relationship with the subsidiary, which “themselves constituted sufficient minimum contacts of the parent with California for jurisdiction to attach.” (*Id*. at p. 553.)

In illustrating this point, the two example cases cited by the *Sonora* court are *Empire Steel Corp. of Texas, Inc. v. Superior Court of Los Angeles County* (1961) 56 Cal.2d 823 (*Empire*) and *Northern Natural Gas Co. v. Superior Court* (1976) 64 Cal.App.3d 983 (*Northern*). In *Empire, supra,* 56 Cal.2d 823, specific jurisdiction was established for breach of contract where the parent made false representation to a third party doing business with the subsidiary wholly owned by parent that knowingly created a misleading perception that the subsidiary was solvent to enter contract with third party. (*Id*. at p. 826.) In *Northern, supra*, 64 Cal.App.3d 983, specific jurisdiction was found where the parent company entered into a contract or partnership with a California entity on the subsidiary’s behalf. (*Id*. at p. 994.) In both cases, the actions were related to activities directly attributable to the parent corporation which was sufficient to confer jurisdiction on the parent corporation. This is not the case here as none of the activities cited by Plaintiff such as advertising, hiring employees, maintaining a centralized policy setting, or overlapping directors and officers, bear substantial connection with Plaintiff’s action for negligence. The “case-linked jurisdictional analysis is intensely fact-specific.” (*Rivelli v. Hemm* (2021) 67 Cal.App.5th 380, 392.)

The cases relied on by Plaintiff are distinguishable. For instance, in *SK Trading Int’l Co. ltd. v. Superior Cou*rt (*People*) (2022) 77 Cal.App.5th 378, it was held that the parent corporation was properly sued in California in anti-competition action brought by the attorney general because its actions went beyond general management of its subsidiary by purposefully participating in gasoline price-fixing scheme against California consumers. (*Id*. at pp. 387-388.) Also for instance, *Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, involved a class action lawsuit brought by a California state resident against a Nevada hotel alleging causes of action for violation of the Unfair Competition law, breach of contract, unjust enrichment, and false advertising, for failing to provide notice of an energy surcharge imposed on hotel guests. (*Id.* at p. 1070.) The court held there was "substantial connection" where the plaintiff's injury was related directly to the content of defendant's promotional activities in California through the internet. (*Ibid*.) Nowhere did the court establish a rule that the use of a website to advertise a corporation's business in the forum state per se satisfied the purposeful availment.

Plaintiff's evidence is also insufficient to satisfy general jurisdiction. California courts have unanimously held "[a] parent company's ownership or control of a subsidiary corporation does not, without more, subject the parent corporation to the jurisdiction of the state where the subsidiary does business." (*DVI, Inc. v. Superior Court* (*Papworth*) (2002) 104 Cal.App.4th 1080, 1092 (*DVI*).) As the California Supreme Court has noted, it is not enough to give California jurisdiction over the foreign parent company whenever a parent company decide to expand its business into California by providing the start-up capital and providing invaluable support to the subsidiary as the latter commence operation in California. (See *Empire Steel Corp. of Texas, Inc. v. Superior Court of Los Angeles County* (1961) 56 Cal.2d 823 [parent company's volitional choice to enter the California market through a subsidiary not enough to give California jurisdiction over Texas corporation].)

Plaintiff's request to conduct jurisdictional discovery is denied.

To meet the burden of proof for personal jurisdiction over a defendant, plaintiff is entitled to conduct discovery with regard to the issue of jurisdiction before the hearing on the motion to quash. (*Mihlon v. Superior Court, supra*, 169 Cal.App.3d 703, 711.) However, a continuance may be denied if there is no showing that discovery would likely produce evidence of "contacts" to establish jurisdiction. (*Beckman v. Thompson* (1992) 4 Cal.App.4th 481, 486-487.) Plaintiff's assertion of purposeful availment is premised on the notion UHSI directed implementation of policies, staffing decisions, supervision, and operational practices which contributed to Plaintiff's injury. Even if evidence of such contact may be uncovered through discovery, activities such as officer interlock, joint filing, centralized advertisement, policy planning and compliance with regulatory standards do not establish the degree of corporate control that would satisfy personal jurisdiction. (See *F. Hoffman-La Roche, ltd. v. Superior Court, supra*, 130 Cal.App.4th at 800-803.)

The motion is granted. Plaintiff's request for continuance to conduct jurisdictional discovery is denied.

If a timely request for oral argument is made by no later than 4:30 p.m. on July 8, 2026, oral argument will be heard on July 9, 2026, at 1:30 p.m. (not 8:30 a.m.).